

13. S-CV-0057192 Zatkulak, Jeanie v. Curtice, James

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Demurrer to the Complaint

Defendant James Curtice demurs to the complaint as to plaintiff Jeanie Zatkulak only, contending the complaint fails to allege facts sufficient to state a claim pursuant to Code of Civil Procedure section 430.10(e). Plaintiff Jeanie Zatkulak opposes the demurrer.

Preliminary Issues

Defendant's request for judicial notice is granted as to exhibits D and E. Defendant's request for judicial notice is also granted as to exhibits A, B, and C as to the fact that they are filed documents; the court does not, however, take judicial notice of the information alleged and declared therein.

Plaintiff's opposition was untimely filed and served without explanation. Plaintiff's counsel is admonished to adhere to the notice periods outlined in Code of Civil Procedure section 1005(b). The court will, however, exercise its discretion to consider all briefing submitted in this matter.

Ruling on the Motion

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant contends that plaintiff Jeanie Zatkulak lacks standing to bring a wrongful death claim in her individual capacity. The complaint identifies plaintiff Jeanie Zatkulak as "surviving parent" to the minor plaintiffs. (Complaint, ¶¶ 1, 3a, 3b, 12.) The complaint alleges, "[a]s a result of Ryan Michael Zatkulak's death, . . . the surviving parent of the decedent's minor children, has now been burdened with having to provide 100% of the care comfort and financial support of the children for whom Decedent once shared, and for whom Decedent was legally obligated to support during the children['s] minority." (Complaint, p. 4.)

Code of Civil Procedure section 377.60 lists persons who have standing to bring a wrongful death claim to include “surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession[,]” and also “if they were dependent on the decedent, the putative spouse, children of the putative spouse, stepchildren, parents, or the legal guardians of the decedent if the parents are deceased.” (Code Civ. Proc., § 377.60, subds. (a), (b).) Courts have rejected efforts to extend wrongful death standing beyond the categories expressly provided for by statute. (See, e.g., *Villacampa v. Russell* (1986) 178 Cal.App.3d 906 [holding an ex-wife did not have wrongful death standing for her ex-husband for recovery of spousal support and one-half of a monthly pension because she did not fit within any of the categories provided for in Code of Civil Procedure section 377 (former Section 377.60)]; *Nieto v. City of Los Angeles* (1982) 138 Cal.App.3d 464 [holding the surviving fiancée of the deceased did not have wrongful death standing and Code of Civil Procedure section 377 (former Section 377.60) was not unconstitutional].)

Here, the complaint alleges that plaintiff Jeanie Zatkulak is the “surviving parent of the decedent’s minor children” and nowhere alleges that plaintiff Jeanie Zatkulak falls into one of the categories outlined in Code of Civil Procedure section 377.60. For this reason, the complaint falls short of alleging plaintiff Jeanie Zatkulak has standing for the purpose of bringing a wrongful death claim individually for the death of the deceased parent of her minor children. Plaintiff’s arguments that *Nieto v. City of Los Angeles* (1982) 138 Cal.App.3d 464 requires a different outcome is misplaced and appears to ignore the holding in that case.

Based on the foregoing, the demurrer is sustained. Plaintiff bears the burden of demonstrating how the complaint may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) Plaintiff falls short of her burden of showing the defects are curable. Accordingly, leave to amend is denied.

After this court’s ruling, minor plaintiffs Samantha Zatkulak and Mark Zatkulak remain plaintiffs in this action. While the complaint alleges their appearance “by and through Jeanie Zatkulak surviving parent,” a review of the court’s file reveals no petition for appointment of Guardian Ad Litem has been submitted or granted for either minor as required by Code of Procedure section 372. The court on its own motion schedules this matter for an order to show cause hearing where plaintiffs should be prepared to show reasons why, if any, the complaint should not be dismissed for failure to obtain court appointment as Guardian Ad Litem for minor plaintiffs on **September 1, 2026 at 9:00 a.m. in Department 32.**

Motion to Strike the Complaint

Defendant James Curtice moves to strike portions of the complaint referring to Jeanie Zatkulak individually as plaintiff. Based on the above ruling sustaining without leave the

demurrer to the complaint as to plaintiff Jeanie Zatkulak, the motion to strike is denied as moot.

14. S-CV-0057953 In Re the Petition of Burke, Tyler John

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Petition for Dissolution of a Corporation and Appointment of Receiver

Petitioners Tyler John Burke and Donald N. Rios petition for judicial dissolution of respondent RBM Construction. Respondents have not yet appeared.

It does not appear the petition is yet at issue. While the verified petition was filed on May 20, 2026, Corporations Code section 1800 authorizes the filing of a “verified complaint” for involuntary dissolution and does not mention the filing of a petition. No summons has been sought or issued. There is no evidence in the court’s file that either respondent has been served the petition. No briefing has been submitted to the court. The court also observes that while the verified petition references two exhibits, no exhibits are attached to the petition.

Based on the foregoing, the petition hearing is dropped from the court’s calendar subject to being re-noticed by petitioner once the petition is at issue. Petitioner shall call and reserve a hearing date on the civil law and motion calendar pursuant to Local Rule 20.2.
